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SENATE BILL NO. 598

An Act relating to driver licenses; amending 47 O.S. 2021, Section 6-105, as last amended by Section 38, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105), which relates to farm permits; providing certain process for persons issued farm permit to receive driver license; updating statutory language; updating statutory references; providing an effective date; and declaring an emergency.

SECTION 1. AMENDATORY 47 O.S. 2021, Section 6-105, as last amended by Section 38, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105), is amended to read as follows:

1. A Class D motor vehicle under the graduated driver license provisions prescribed in subsections B through E of this section;

2. A motorcycle under the provisions prescribed in subsection H of this section; or

1 3. A farm vehicle under the provisions prescribed in subsection
2 I of this section.

3 B. Any person who is at least fifteen (15) years of age may
4 drive during a session in which the driver is being instructed in a
5 driver education course, as set out in subparagraphs a, b, c, d, and
6 e of paragraph 1 of subsection C of this section, by a certified
7 driver education instructor who is seated in the right front seat of
8 the motor vehicle.

9 C. Any person:

10 1. Who is at least fifteen and one-half (15 1/2) years of age
11 and is currently receiving instruction in or has successfully
12 completed driver education. For purposes of this section, the term
13 "driver education" shall mean:

14 a. a prescribed secondary school driver education course,
15 as provided for in Sections 19-113 through ~~19-121~~ 19-
16 124 of Title 70 of the Oklahoma Statutes,

17 b. a driver education course, certified by Service
18 Oklahoma, from a parochial, private, or other
19 nonpublic secondary school,

20 c. a commercial driver training ~~course~~ school, as defined
21 by Sections 801 through 808 of this title,

22 d. a parent-taught driver education course, certified by
23 Service Oklahoma, in conjunction with the Department
24 of Public Safety. Service Oklahoma shall promulgate

- rules for any parent-taught driver education course,
- or
- e. a driver education course certified by a state other than Oklahoma; or

2. Who is at least sixteen (16) years of age, may, upon successfully passing all parts of the driver license examination administered by Service Oklahoma, or an approved written examination proctor, except the driving examination, be issued a learner permit which will grant the permittee the privilege to operate a Class D motor vehicle upon the public highways only between the hours of 5:00 a.m. and 10:00 p.m. and while accompanied by a licensed driver who is at least twenty-one (21) years of age and who is actually occupying a seat beside the permittee; provided, the written examination for a learner permit may be waived by Service Oklahoma upon verification that the person has successfully completed driver education.

D. 1. Any person:

- a. who has applied for, been issued, and has possessed a learner permit for a minimum of one hundred eighty (180) days,
- b. whose custodial legal parent or legal guardian certifies to Service Oklahoma by sworn affidavit that the person has received a minimum of fifty (50) hours of actual behind-the-wheel training, of which at least

1 ten (10) hours of such training was at night, from a
2 licensed driver who was at least twenty-one (21) years
3 of age and who was properly licensed to operate a
4 Class D motor vehicle for a minimum of two (2) years,
5 and

6 c. who has completed a free course approved by the
7 ~~Oklahoma~~ Department of Transportation on teen driver
8 work zone and first responder safety,

9 may be issued an intermediate Class D license upon successfully
10 passing all parts of the driver license examinations administered by
11 Service Oklahoma; provided, the written examination, if it has not
12 previously been administered or waived, may be waived by Service
13 Oklahoma upon verification that the person has successfully
14 completed driver education or the driving examination may be waived
15 by Service Oklahoma upon successful passage of the examination
16 administered by a certified designated examiner, as provided for in
17 Section 6-110 of this title. However, notwithstanding the date of
18 issuance of the learner permit, if the person has been convicted of
19 a traffic offense which is reported on the driving record of that
20 person, the time period specified in subparagraph a of this
21 paragraph shall be recalculated to begin from the date of conviction
22 for the traffic offense, and must elapse before that person may be
23 issued an intermediate Class D license. If the person has been
24 convicted of more than one traffic offense which is reported on the

1 driving record of that person, the time period specified in
2 subparagraph a of this paragraph shall be recalculated to begin from
3 the most recent date of conviction, and must elapse before that
4 person may be issued an intermediate Class D license.

5 2. A person who has been issued an intermediate Class D license
6 under the provisions of this subsection:

7 a. shall be granted the privilege to operate a Class D
8 motor vehicle upon the public highways:

9 (1) only between the hours of 5:00 a.m. and 10:00
10 p.m., except for driving to and from work,
11 school, school activities, and church activities,
12 or

13 (2) at any time, if a licensed driver who is at least
14 twenty-one (21) years of age is actually
15 occupying a seat beside the intermediate Class D
16 licensee, or if the intermediate Class D licensee
17 is a farm or ranch resident, and is operating a
18 motor vehicle while engaged in farming or
19 ranching operations outside the limits of a
20 municipality, or driving to and from work,
21 school, school activities, or church activities,
22 and

23 b. shall not operate a motor vehicle with more than one
24 passenger unless:

- 1 (1) all passengers live in the same household as the
2 custodial legal parent or legal guardian, or
3 (2) a licensed driver at least twenty-one (21) years
4 of age is actually occupying a seat beside the
5 intermediate Class D licensee.

6 E. Any person who has been issued an intermediate Class D
7 license for a minimum of:

8 1. One (1) year; or

9 2. One hundred eighty (180) days, if the person has completed
10 both the driver education and the parent-certified behind-the-wheel
11 training provisions of subparagraph b of paragraph 1 of subsection D
12 of this section,

13 may be issued a Class D license. However, notwithstanding the date
14 of issuance of the Class D license, if the person has been convicted
15 of a traffic offense which is reported on the driving record of that
16 person, the time periods specified in paragraph 1 or 2 of this
17 subsection, as applicable, shall be recalculated to begin from the
18 date of conviction for the traffic offense, and must elapse before
19 that person may be issued a Class D license. If the person has been
20 convicted of more than one traffic offense which is reported on the
21 driving record of that person, the time ~~periods~~ period specified in
22 paragraph 1 or 2 of this subsection, as applicable, shall be
23 recalculated to begin from the most recent date of conviction, and
24 must elapse before that person may be issued a Class D license.

1 F. Learner permits and intermediate Class D licenses shall be
2 issued for the same period as all other driver licenses. The
3 licenses may be suspended or canceled at the discretion of the
4 Department of Public Safety, with notice to Service Oklahoma for
5 violation of restrictions, for failing to give the required or
6 correct information on the application, for knowingly giving false
7 or inaccurate information on the application or any subsequent
8 documentation related to the granting of driving privileges, for
9 using a hand-held electronic device while operating a motor vehicle
10 for non-life-threatening emergency purposes or for violation of any
11 traffic laws of this state pertaining to the operation of a motor
12 vehicle.

13 G. Service Oklahoma shall promulgate rules establishing
14 procedures for removal of learner permit and intermediate Class D
15 license restrictions from the permit or license upon the permittee
16 or licensee qualifying for a less restricted or an unrestricted
17 license.

18 H. Any person fourteen (14) years of age or older may apply for
19 a restricted Class D license with a motorcycle-only restriction.
20 After the person has successfully passed all parts of the motorcycle
21 examination other than the driving examination, has successfully
22 completed a certified state-approved motorcycle basic rider course
23 approved by the Department of Public Safety, in conjunction with
24 Service Oklahoma, and has met all requirements provided for in the

1 rules of the Department and Service Oklahoma, Service Oklahoma shall
2 issue to the person a restricted Class D license with a motorcycle-
3 only restriction which shall grant to the person, while having the
4 license in the person's immediate possession, the privilege to
5 operate a motorcycle or motor-driven cycle:

6 1. With a piston displacement not to exceed three hundred cubic
7 centimeters (300 cc) or a sixteen and eight-tenths (16.8) kilowatt
8 electric power source;

9 2. Between the hours of 4:30 a.m. to 9:00 p.m. only;

10 3. While wearing approved protective headgear; and

11 4. While accompanied by and receiving instruction from any
12 person who is at least twenty-one (21) years of age and who is
13 properly licensed pursuant to the laws of this state to operate a
14 motorcycle or motor-driven cycle, and who has visual contact with
15 the restricted licensee.

16 The restricted licensee may apply on or after thirty (30) days
17 from date of issuance of the restricted Class D license with a
18 motorcycle-only restriction to have the restriction of being
19 accompanied by a licensed driver removed by successfully completing
20 the driving portion of an examination.

21 The written examination and driving examination for a restricted
22 Class D license with a motorcycle-only endorsement shall be waived
23 by Service Oklahoma upon verification that the person has
24

1 successfully completed a certified state-approved motorcycle basic
2 rider course approved by the Department and Service Oklahoma.

3 I. 1. Any person who is less than seventeen (17) years of age
4 but is at least fourteen (14) years of age and who resides upon a
5 farm in this state or is employed for compensation upon a farm in
6 this state may apply to Service Oklahoma for a farm permit
7 authorizing such person, while possessing the permit, to operate any
8 Class D motor vehicle.

9 2. a. A farm permit shall entitle the licensee, who is at
10 least fourteen (14) years of age but less than sixteen
11 (16) years of age, to operate the appropriate motor
12 vehicles at any time:

13 (1) while going to or from or in connection with any
14 farm job, employment, or other farm-related work,

15 (2) on days while school is in session, over the most
16 direct and accessible route between the
17 licensee's residence and school of enrollment for
18 the purpose of school attendance; provided, that
19 the privilege shall only extend to those
20 licensees who reside on a farm and commute
21 directly from their place of residence to the
22 school in which they are enrolled, or

23 (3) when the licensee is operating a passenger car at
24 any time when accompanied by an adult who is the

holder of a valid commercial driver license,
Class A, B, C, or D driver license and who is
actually occupying a seat beside the driver.

b. For a period of six (6) months, a farm permit shall
entitle the licensee who is at least sixteen (16)
years of age to operate the appropriate motor vehicles
at any time:

(1) from 5:00 a.m. to 9:00 p.m.,

(2) while going to or from or in connection with any
farm job, employment, or other farm-related work,

(3) while going to or from authorized school
activities,

(4) while going directly to or from any religious
worship service held by a religious organization,
or

(5) while the licensee is operating a passenger car
at any time while accompanied by an adult who is
the holder of a valid commercial driver license,
Class A, B, or C driver license, and who is
actually occupying a seat beside the driver.

After such six-month period, if the licensee has complied with the
provisions of this subsection, such farm permit shall entitle the
licensee to operate the appropriate motor vehicles at any time
without the restrictions required by this subsection.

1 3. A farm permit shall be issued only if:

2 a. the applicant can prove that such applicant resides ~~or~~
3 ~~works~~ on a farm by submitting the signed affidavit of
4 either a parent or guardian stating that the applicant
5 lives on a farm, or

6 b. the applicant does not live on a farm but works on a
7 farm and the applicant submits the signed affidavit of
8 the applicant's employer and parent or guardian
9 attesting to such employment, and

10 c. the applicant has successfully completed the
11 examination requirements in Section 6-110 of this
12 title, ~~and~~

13 ~~c. the applicant does not live on a farm but works on a~~
14 ~~farm and the applicant submits the signed affidavit of~~
15 ~~the applicant's employer and parent or guardian~~
16 ~~attesting to such employment.~~

17 4. Any licensee issued a farm permit under this subsection:

18 a. who is less than sixteen (16) years of age shall not
19 operate any motor vehicle with nonsibling minor
20 passengers,

21 b. who is at least sixteen (16) years of age, for a
22 period of six (6) months after reaching sixteen (16)
23 years of age, shall not operate any motor vehicle with
24 more than one passenger who is less than eighteen (18)

1 years of age and who is not a member of the licensee's
2 immediate family, or

3 c. who is at least fourteen (14) years of age, but less
4 than sixteen (16) years of age, shall not operate any
5 motor vehicle on interstate or turnpike highway
6 systems, nor shall a licensee operate a motor vehicle
7 within the limits of a city with a population in
8 excess of one hundred thousand (100,000) persons
9 according to the latest Federal Decennial Census.

10 Any conviction for violating this paragraph shall be construed as a
11 moving traffic violation. Service Oklahoma may, in its discretion,
12 suspend the permit of an individual for violation of this paragraph.

13 5. Any licensee issued a farm permit under this subsection
14 shall not operate a wireless communication device while driving a
15 motor vehicle, except that a licensee may operate a wireless
16 communication device while driving a motor vehicle to report illegal
17 activity or to summon medical or other emergency help.

18 6. As used in this subsection, "farm" means any parcel of land
19 for which the owner has an agricultural exemption permit issued by
20 the Oklahoma Tax Commission.

21 7. a. A farm permit issued under this subsection is subject
22 to suspension or revocation in the same manner as any
23 other driver license.

1 b. A farm permit may be suspended in accordance with
2 Section 6-113 of this title for any violation of
3 restrictions under this subsection.

4 c. Service Oklahoma shall suspend the farm permit upon
5 receiving satisfactory evidence that the licensee has
6 been involved in two or more accidents chargeable to
7 the licensee and such suspended license shall not be
8 reinstated for one (1) year.

9 8. Any licensee issued a farm permit under this subsection
10 shall provide, prior to reaching sixteen (16) years of age, a signed
11 affidavit of either a parent or guardian stating that the applicant
12 has completed at least fifty (50) hours of adult-supervised driving
13 with at least ten (10) of those hours being at night. The adult-
14 supervised driving required by this paragraph shall be conducted by
15 an adult who is at least twenty-one (21) years of age and is the
16 holder of a valid commercial driver license, Class A, B, C, or D
17 driver license. Evidence of failure of any licensee who was
18 required to complete the fifty (50) hours of adult-supervised
19 driving under this subsection shall not be admissible in any action
20 for the purpose of determining any aspect of comparative negligence
21 or mitigation of damages.

22 9. Any licensee issued a farm permit under this subsection who~~+~~
23 ~~a.~~ is under sixteen (16) years of age and is convicted of
24 two or more moving traffic violations committed on

1 separate occasions shall not be eligible to receive a
2 driver license which is not restricted, in accordance
3 with the provisions of subparagraph a of paragraph 2
4 of this subsection, until the person reaches seventeen
5 (17) years of age~~7.~~

6 10. Any person who is at least sixteen (16) years of age and
7 has been issued a farm permit for a minimum of one (1) year may
8 apply for and be issued a Class D license, except for any licensee
9 who:

10 ~~b.~~ a. is at least sixteen (16) years of age but less than
11 seventeen (17) years of age and is convicted of two or
12 more moving traffic violations committed on separate
13 occasions shall not be eligible to receive a driver
14 license which is not restricted, in accordance with
15 the provisions of subparagraph b of paragraph 2 of
16 this subsection, until the person reaches eighteen
17 (18) years of age, or

18 ~~e.~~ b. fails to provide the affidavit required under
19 paragraph 8 of this subsection shall not be eligible
20 to receive a driver license which is not restricted,
21 in accordance with the provisions of subparagraph a of
22 paragraph 2 of this subsection, until the person
23 provides such affidavit to Service Oklahoma or the
24

1 person reaches seventeen (17) years of age, whichever
2 occurs first.

3 J. As used in this section:

4 1. "Hand-held electronic device" means a mobile telephone or
5 electronic device with which a user engages in a telephone call,
6 plays or stores media, including, but not limited to, music and
7 video, or sends or reads a text message while requiring the use of
8 at least one hand; and

9 2. "Using a hand-held electronic device" means engaging any
10 function on an electronic device.

11 K. All driver education courses provided for in paragraph 1 of
12 subsection C of this section shall include education regarding the
13 dangers of texting while driving and the effects of being under the
14 influence of alcohol or other intoxicating substance while driving.

15 SECTION 2. This act shall become effective July 1, 2025.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

20 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
21 February 17, 2025 - DO PASS
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